

Cal.App.2d 181, the court agreed that “whether or not giving the incorrect address misled or prejudiced the [Defendant]... is a triable issue of fact,” and that the granting of the summary judgment is improper. (*Johnson v. City of Oakland* (1961) 188 Cal.App.2d 181, 182-83.)

In sum, triable issues exist as to whether Plaintiff substantially complied with the Government Claims Act, whether Defendant waived its defense, and whether Defendant was misled or suffered any prejudice by the pleading variance. This is sufficient to defeat summary judgment.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2506419	PITA VS AMERICAN HONDA MOTOR CO., INC	MOTION TO COMPEL FURTHER RESPONSES TO PLAINTIFFS' REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE

Tentative Ruling:

- **Grant the motion as to RFP nos. 1-14.**
- **Grant the motion as to RFP nos. 15-29, but limited to rules, policies, and procedures applicable to vehicles of the same year, make, and model as the Vehicle.**
- **Grant the motion as to RFP no. 30 but limited to complaints about the defects/nonconformities that Plaintiffs contend impaired the use, value, and safety or the Vehicle.**
- **Deny the motion as to RFP no. 31.**

This is a lemon law action. On November 12, 2025, Plaintiffs Zoila Villegas Pita and Richard Kave (“Plaintiffs”) filed a Complaint against Defendant American Honda Motor Co., Inc. (“Defendant”) for (1) breach of express warranty in violation of the Song Beverly Act; (2) breach of implied warranty in violation of the Song Beverly Act; and (3) violation of section 1793.2 of the Song Beverly Act. In the Complaint, Plaintiffs allege that on March 16, 2024, they purchased a 2024 Honda Pilot (the “Vehicle”), on which Defendant issued a written warranty. (Complaint at ¶¶ 8-9, 20.) The Vehicle was delivered to Plaintiffs with defects to the engine, electrical emission, structural, and steering systems that impaired the use, value, and safety of the Vehicle. (Complaint at ¶¶ 10, 21, 25.) Plaintiffs brought the Vehicle to Defendant for repairs, and Defendant could not conform the Vehicle to the warranty within a reasonable number of attempts. (Complaint at ¶¶ 11-13, 26-27.)

On February 2, 2026, Plaintiffs propounded requests for production of documents (“RFPs”) on Defendant. On March 27, 2026, Defendant served responses to the RFPs that Plaintiffs deemed non-compliant.

Plaintiffs now move for an order compelling Defendant to provide further responses to RFP nos. 1, 3, 4, and 7-31, which seek documents related to the Vehicle; Defendant’s policies and procedures for handling warranty issues and Song Beverly Act claims; and Defendant’s knowledge of similar defects in vehicles of the same year, make, and model. They argue the discovery is proper and necessary to support their claims, the boilerplate objections raised by Defendant lack merit, and Defendant failed to produce many responsive documents.

In opposition, Defendant first argues that the motion should be denied because Plaintiff’s separate statement does not comply with CRC 3.1345. It also argues that Plaintiffs’ abusive discovery tactics are the reason California recently enacted AB 1755. its objections were proper, and it provided code-compliant responses to every RFP.

Plaintiffs complied with their statutory obligation to meet and confer before filing this motion. (See, Decl. of Ryan Ardi [“Ardi Decl.”] at ¶¶ 14-17.)

Defendant first argues that Plaintiffs’ motion should be denied because their separate statement does not comply with CRC 3.1345. CRC 3.1345(c) states that “[a] separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response.” It then states that the separate statement must include the text of each request/interrogatory, the text of each response, and the factual and legal reasons for compelling a further response. (*Ibid.*) While Defendant is correct that Plaintiffs include general arguments about various objections raised by Defendant in their separate statement, they do set forth the text of each request, Defendant’s response, and the reasons why further responses are required. Thus, Plaintiffs comply with CRC 3.1345, and Defendant’s argument to the contrary is without merit.

To prevail over a claim under the *Song Beverly Act*, Plaintiff must prove a nonconformity with a vehicle that substantially impaired its use, value, or safety that Defendant and/or its authorized representatives failed to repair after a reasonable number of attempts. (*Oregel v. Am. Isuzu Motors, Inc.* (2001) 90 Cal.App.4th 1094.) The Song-Beverly Act also provides a right of action to recover damages and other relief if the vehicle was sold with a known defect. (Civ. Code § 1794(a); *Mexia v. Rinker Boat Co., Inc.* (2009) 17 Cal.App.4th 1297, 1304-05 (implied warranty of merchantability). Under the Song-Beverly Act, a “manufacturer has an affirmative duty to replace a vehicle or to make restitution to the buyer if the manufacturer is unable to repair the new vehicle after a reasonable number of repair attempts.” (*Lukather v. General Motors, LLC* (2010) 181 Cal.App.4th 1041, 1050.) Willful failure to comply with that duty subjects a manufacturer to a civil penalty of up to twice the amount of actual damages. (Civ. Code § 1794(c).) Critical to the showing of “willfulness” is whether the manufacturer knew of the alleged defect, including not only through evidence that the vehicle was not been repaired after a reasonable number of attempts, but also through internal investigations

and warranty records showing that other consumers were similarly affected. (*Jensen v. BMW of N. Am., Inc.* (1995) 35 Cal.App.4th 112, 136 [in assessing whether a violation is willful, the jury is entitled to consider, among other things, whether “the manufacturer knew the vehicle had not been repaired within a reasonable period or after a reasonable number of attempts”]; *Oregel, supra*, 90 Cal.App.4th at 1104-1105 [evidence that defendant-manufacturer was aware of unsuccessful repair attempts can support civil penalty liability]; *Troensegaard v. Silvercrest Indus., Inc.* (1985) 175 Cal.App.3d 218, 226 [noting that defendant manufacturer’s possession of a report on the defective condition was sufficient to support civil penalty liability]; *Krotin v Porsche Cars North America, Inc.* (1995) 38 Cal.App.4th 294, 303 [noting an “automobile manufacturer need not read minds to determine which vehicles are defective; it need only read its dealers’ service records”].)

A party may file a motion compelling further answers to RFPs if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (C.C.P. §2031.310.) The moving party on a motion to compel further responses to RFPs must set forth “specific facts showing good cause justifying the discovery sought by the demand.” (C.C.P. §2031.310(b)(1).) The burden to establish “good cause,” is met by a fact-specific showing of relevance. (*Glenfed Develop. Corp. v. Sup. Ct.* (National Union Fire Ins. Co. of Pittsburgh, Penn.) (1997) 53 Cal.App.4th 1113, 1117, citing Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 1996) ¶¶ 8:1495.6 to 8:1495.10.) “In the context of discovery, evidence is ‘relevant’ if it might reasonably assist a party in evaluating its case, preparing for trial, or facilitating settlement.” (*Glenfed Development Corp. v. Superior Court* (1997) 53 Cal.App.4th 1113, 1117.) It is sufficient if the information sought might reasonably lead to admissible evidence. (C.C.P. §2017.010.) Once good cause is established, the responding party has the burden to justify any objections. (*Kirkland, supra*, 25 Cal.App.4th at 98.)

RFP Nos. 1-14

In RFP nos. 1, 3, 4, and 7-14, Plaintiffs seek documents related to the Vehicle, including those contained in Defendant’s Customer Relations Center, and those related to: inspections; repair orders; diagnostic codes related to inspections or repairs; recalls, TSBs, and/or dealer advisories; summaries of warranty repairs performed and amounts paid for the repairs; photos and videos; and communications between Defendant and authorized repair facilities, Plaintiff, and/or third parties about the Vehicle. (Ardi Decl., Ex. 1, nos. 1, 3, 4, 7-14.)

In response to these RFPs, Defendant objects that they seek confidential and proprietary information. As to several of the RFPs, Defendant also objects that they ask Defendant to respond on behalf of other entities. Defendant then states that “subject to and without waiving these objections, the requested production will be allowed in whole and all documents in the requested category that are in the possession, custody, or control of AHM will be included in the production.” (Ardi Decl., Ex. 2, nos. 1, 3, 4, 7-14.)

Defendants’ objections to these RFPs lack merit. First, it does not appear that any of the RFPs seek documents from entities other than Defendant, and Defendant

fails to explain how this is the case. Additionally, objections based on confidentiality are not proper grounds for withholding responsive information. (See, *Columbia Broadcasting Sys., Inc. v. Sup. Ct.* (1968) 263 Cal.App.2d 12, 23 [“We know of no case holding that this is a proper objection to an otherwise proper interrogatory.”].) Furthermore, a stipulated protective order has been entered by the Court. While Defendant did agree to produce responsive documents, its response is limited by the meritless objections it raised. Accordingly, the motion is granted as to these RFPs, and Defendant is ordered to provide further responses, without objection, and to produce all responsive documents.

A. RFP Nos. 15-29

In RFP nos. 15-22, Plaintiffs request documents related to Defendant’s policies and procedures since 2020 on various issues, including: issuing refunds or replacement of vehicles under the Song Beverly Act, and how this determination is made; escalating or creating a Service Activity regarding customer complaints of defects; calculating the repurchase of a vehicle; and advising customers to deliver a vehicle for diagnosis or repair instead of offering a repurchase/replacement. (Ardi Decl., Ex. 1, nos. 15-22.) RFP nos. 23-29 ask for Defendant’s warranty policy and procedure manuals provided to authorized repair facilities since 2020 on various issues, including: how to determine if repairs are covered under the warranty or as “goodwill;” repeated repair visits for the same issue; what repairs require Defendant’s approval to be covered under the warranty; what repairs won’t be reimbursed as warranty repairs; and how to handle customer complaints that are not duplicated at a repair visit. (Ardi Decl., Ex. 1, nos. 23-29.)

Defendant objects that these requests are overbroad, vague and ambiguous, and not relevant or likely to lead to admissible evidence. In response to no. 21 (regarding training materials on how to calculate a repurchase), Defendant also objects that the request invades the attorney-client privilege. Again, these objections lack merit.

Plaintiffs are entitled to information about policies and procedures because it is relevant to whether Defendant’s failure to comply was willful to support penalties. (See, Civ. Code § 1794(c); *Schreidel v. American Honda Motor Co.* (1995) 34 Cal.App.4th 1242, 1249-1250.) Furthermore, Defendant fails to show that any information requested is protected by the attorney client privilege. “The attorney-client privilege, set forth at Evidence Code section 954, confers a privilege on the client “to refuse to disclose, and to prevent another from disclosing, a confidential communication between client and lawyer.” (*Costco Wholesale Corp. v. Superior Court* (2009) 47 Cal.4th 725, 732). “The party claiming privilege carries the burden of showing that the evidence which it seeks to suppress is within the terms of the statute.” (*D. I. Chadbourne, Inc. v. Superior Court of San Francisco* (1964) 60 Cal.2d 723, 729). Evidentiary privileges must be construed narrowly while discovery statutes must be construed liberally. (*Sullivan v. Superior Court* (192) 29 Cal.App.3d 64, 72). In the present case, Defendant has not presented any evidence that the information sought includes attorney-client communications, and therefore, has not met its burden of showing that any of the information sought in the disputed RFPs is protected by the attorney-client privilege.

As with RFP nos. 1-14, while Defendant ultimately provides a substantive response to most of the RFPs (either stating that no responsive documents exist [nos. 15, 17-22] or they will be produced [no. 16, 27, 29]), these responses are limited by Defendant's meritless objections, so a further response is necessary. (Ardi Decl., Ex. 2, nos. 15-22, 27, 29.)

Additionally, in response to nos. 23-26 and 28, Defendant states: "Subject to and without waiving these objections, AHM is unable to comply with this request. Pursuant to a diligent search and reasonable inquiry, AHM has no automotive warranty policy and procedure manual, or similar document, and no such document has ever existed. As directed to documents regarding AHM's automotive policies and procedures regarding warranty coverage and repair, the requested production will be allowed in whole and all documents in the requested category that are in the possession, custody, or control of AHM will be included in the production." (Ardi Decl., Ex. 2, nos. 23-26, 28.) This response is contradictory and evasive.

Accordingly, the motion is granted as to RFP nos. 15-29, but the requests are limited to rules, policies, and procedures applicable to vehicles of the same year, make, and model as the Vehicle in this case.

B. RFP No. 30

In RFP no. 30, Plaintiffs seek a list or compilation of other customer complaints regarding 2024 Honda Pilot vehicles that are substantially similar to the complaints made by Plaintiffs. Defendant raises the same objections discussed above and refuses to produce any documents. Plaintiffs are entitled to information about other vehicles with the same make and model with the same defects. (See e.g., *Donlen v. Ford Motor Co.* (2013) 217 Cal.App.4th 138; *Doppes v. Bentley Motors, Inc.* (2009) 174 Cal.App.4th 967, 971.) Thus, RFP no. 30 is generally proper. However, it is limited to complaints about the defects/nonconformities that Plaintiffs contend impaired the use, value and safety of the Vehicle (as opposed to any complaint made about the Vehicle). Therefore, the motion is granted as to RFP no. 30 with this limitation.

C. RFP Nos. 31

RFP no. 31 asks Defendant for "All DOCUMENTS that refer to, reflect, or relate to any Field Report issued, or in the process of being issued, in response to complaints experienced by Plaintiffs as described in Defendant's warranty history/summary and within the line items of the repair orders created at Defendant's authorized repair facility." As written, it appears this request is looking for documents related to complaints made by Plaintiffs. However, both parties treat it as seeking information about other vehicles. As the meaning of the request is unclear even to the Court, the motion is denied as to this request.

Accordingly,

The motion is GRANTED as to RFP nos. 1-14.

The motion is GRANTED as to RFP nos. 15-29, but limited to rules, policies, and procedures applicable to vehicles of the same year, make, and model as the Vehicle.

The motion is GRANTED as to RFP no. 30 but limited to complaints about the defects/nonconformities that Plaintiffs contend impaired the use, value, and safety of the Vehicle.

The motion is DENIED as to RFP no. 31.